

SENATE No. 3045

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, April 8, 2026.

The committee on Health Care Financing to whom was referred the Senate Bill promoting and enhancing the sustainability of birth centers and the midwifery workforce (Senate, No. 784), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 3045) [Estimated cost: greater than \$100,000].

For the committee,
Cindy F. Friedman

SENATE No. 3045

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting and enhancing the sustainability of birth centers and the midwifery workforce.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17W the following section:-

3 Section 17X. (a) The commission shall ensure that the rate of payment for services
4 provided to an active or retired employee of the commonwealth who is insured under the group
5 insurance commission that are rendered by a certified nurse-midwife authorized to engage in the
6 practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of
7 chapter 112 that is within the scope of the certified nurse-midwife's authorization to practice
8 shall be no less than the payment rate for the same service if performed by a physician,
9 regardless of the site of services, or length of stay.

10 (b) The commission shall ensure that the rate of payment for services provided to an
11 active or retired employee of the commonwealth who is insured under the group insurance that
12 are rendered by a licensed certified professional midwife authorized to engage in the practice of
13 midwifery by the board of registration in midwifery pursuant to section 110 of chapter 13 that is

14 within the scope of the licensed certified professional midwife's authorization to practice shall be
15 no less than the payment rate for the same service if performed by a physician, regardless of the
16 site of services, or length of stay.

17 SECTION 2. Paragraph two of section 10A of chapter 118E of the General Laws,
18 as appearing in chapter 186 of the acts of 2024, is hereby amended by inserting after the word
19 “division”, in line 21, the following words:- and its contracted health insurers, health plans,
20 health maintenance organizations, behavioral health management firms and third-party
21 administrators under contract to a Medicaid managed care organization, accountable care
22 organization or primary care clinician plan.

23 SECTION 3. Section 10A of chapter 118E of the General Laws, as inserted by
24 section 40 of chapter 186 of the acts of 2024, is hereby amended by striking out the third
25 paragraph and inserting in place thereof the following paragraph:-

26 The division and its contracted health insurers, health plans, health maintenance
27 organizations, behavioral health management firms and third-party administrators under contract
28 to a Medicaid managed care organization, accountable care organization or primary care
29 clinician plan shall provide coverage for midwifery services, including prenatal care, childbirth
30 and postpartum care, provided by a licensed certified professional midwife regardless of the site
31 of services. The payment rate for a service provided by a licensed certified professional midwife
32 that is within the scope of the licensed certified professional midwife’s authorization to practice
33 shall be no less than the payment rate for the same service if performed by a physician,
34 regardless of the site of services, or length of stay.

SECTION 4. Chapter 175 of the General Laws is hereby amended by inserting after section 47YY the following section:-

Section 47ZZ. (a) A policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within or without the commonwealth shall provide that the rate of payment for services rendered by a certified nurse-midwife authorized to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112 that is within the scope of the certified nurse-midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

(b) A policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within or without the commonwealth shall provide that the rate of payment for services rendered by a licensed certified professional midwife authorized to engage in the practice of midwifery by the board of registration in midwifery pursuant to section 110 of chapter 13 that is within the scope of the licensed certified professional midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

SECTION 5. Chapter 176A of the General Laws is hereby amended by inserting after section 8ZZ the following section:-

Section 8AAA. (a) A contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within or without the commonwealth shall provide that the rate of payment for services rendered by a certified nurse-midwife authorized to engage in the practice of nurse-midwifery by the board of

registration in nursing pursuant to section 80C of chapter 112 that is within the scope of the certified nurse-midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services.

(b) A contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within or without the commonwealth shall provide that the rate of payment for services rendered by a licensed certified professional midwife authorized to engage in the practice of midwifery by the board of registration in midwifery pursuant to section 110 of chapter 13 that is within the scope of the licensed certified professional midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

SECTION 6. Chapter 176B of the General Laws is hereby amended by inserting after section 4ZZ the following section:-

Section 4AAA. (a) Any subscription certificate under an individual or group medical service agreement that is delivered, issued or renewed within the commonwealth shall provide that the rate of payment for services rendered by a certified nurse-midwife authorized to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112 that is within the scope of the certified nurse-midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services.

(b) Any subscription certificate under an individual or group medical service agreement that is delivered, issued or renewed within the commonwealth shall provide that the rate of payment for services rendered by a licensed certified professional midwife authorized to engage

in the practice of midwifery by the board of registration in midwifery pursuant to section 110 of chapter 13 that is within the scope of the licensed certified professional midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

SECTION 7. Chapter 176G of the General Laws is hereby amended by inserting after section 4RR the following section:-

Section 4SS. (a) Any individual or group health maintenance contract that is issued or renewed within or without the commonwealth shall provide that the rate of payment for services rendered by a certified nurse-midwife authorized to engage in the practice of nurse-midwifery by the board of registration in nursing pursuant to section 80C of chapter 112 that is within the scope of the certified nurse-midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

(b) Any subscription certificate under an individual or group medical service agreement that is delivered, issued or renewed within the commonwealth shall provide that the rate of payment for services rendered by a licensed certified professional midwife authorized to engage in the practice of midwifery by the board of registration in midwifery pursuant to section 110 of chapter 13 that is within the scope of the licensed certified professional midwife's authorization to practice shall be no less than the payment rate for the same service if performed by a physician, regardless of the site of services, or length of stay.

SECTION 8. No later than 12 months after the effective date of this act, the department of public health shall establish licensing requirements, plan review checklists and

101 facility guidelines specific for birth centers that reflect the particular needs of birth centers and
102 low-risk childbearing people. The requirements and guidelines shall be developed in consultation
103 with operators of birth centers in the commonwealth, people involved with the development of
104 prospective birth centers in the commonwealth, and groups concerned with improving birth
105 outcomes, midwifery and birth centers, including, but not limited to, the American College of
106 Nurse-Midwives, the National Association of Certified Professional Midwives, the American
107 Association of Birth Centers, and the Commission for the Accreditation of Birth Centers.